

Higher Education Employer Confidential Brief

Day 4 Session 4 | Plenary B | Employer team

Fictional training exercise. All institutions, disputes, mandates and figures are invented for learning.

Read only this handout and your sector's shared facts. Keep this brief within your assigned team.

If they raise the promotion criteria: Crediting a career break towards the continuous-service requirement has no cost in the current financial year. It would affect roughly forty staff over three years, and it sets a precedent you cannot easily reverse. It is within the Council's authority. Decide whether it is worth more to you as a concession than as a refusal.

Do not read: the separate worker-side download.

Your mandate: Settle the arrears over not fewer than three financial years, and avoid any commitment that would require diverting funds from the capital project mid-delivery.

Your walk-away: You may not commit to clearing arrears within the current financial year, and you may not sign anything that pre-commits next year's exchequer allocation before it is confirmed.

What you know that they may not: The exchequer allocation for the coming year is expected to rise modestly, but the figure is not confirmed and you have been instructed not to disclose the projection.

Your pressure: If individual legal claims begin, the institution's exposure rises well above the KSh 94 million, and the Council has told you to avoid that outcome.

What you could offer: Written acknowledgement that the entitlement is contractual - this costs nothing and is what they most want. A dated three-year schedule. A joint monitoring committee with quarterly reporting. Priority for the lowest-paid staff in the first instalment.

What you cannot offer: Full settlement this year, or a commitment contingent on an unconfirmed allocation figure you are not permitted to disclose.

Quietly: Acknowledging the entitlement early would cost you nothing financially and would substantially change the temperature of the meeting. Whether you use that early, as trust-building, or hold it as a concession is a genuine strategic choice.